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Plaintiff, *Pro per pro se*

Dated: April 16, 2025

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA**

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____ /

Case No. 2:2025CV00404

**PLAINTIFF'S PRETRIAL MOTION TO ESTABLISH PERSONAL
JURISDICTION OVER DEFENDANTS IN THE EASTERN DISTRICT OF
CALIFORNIA**

MEMORANDUM OF POINTS AND AUTHORITIES

1 I. INTRODUCTION

2 Plaintiff Mathew Tyler ("Plaintiff"), an indigent layperson appearing pro per pro se and
3 proceeding in forma pauperis, hereby moves this Court for an order establishing personal
4 jurisdiction over all Defendants in this action. This motion demonstrates that this Court
5 has personal jurisdiction over Defendants based on their purposeful activities directed
6 toward California, the substantial connections between Defendants' conduct and this
7 forum, and the reasonable and fair exercise of jurisdiction consistent with constitutional
8 due process.

9 As a qualified individual with a disability under the Americans with Disabilities Act
10 ("ADA") and Section 504 of the Rehabilitation Act, and as a crime victim as defined by
11 18 U.S.C. § 3771, 34 U.S.C. § 20141(e)(2), and California Constitution Article 1 § 28(e),
12 Plaintiff brings this action to remedy coordinated civil rights violations that occurred
13 substantially within this judicial district and caused direct harm to Plaintiff within the
14 Eastern District of California.

15 II. LEGAL STANDARD

16 Federal courts apply a two-part analysis to determine whether personal jurisdiction exists
17 over non-resident defendants. First, the court examines whether jurisdiction exists under
18 the forum state's long-arm statute. Second, the court determines whether asserting
19 jurisdiction comports with constitutional due process. Cal. Civ. Proc. Code § 410.10
20 extends jurisdiction to the full extent permitted by the U.S. Constitution, making these

1 inquiries coextensive in California. See *Mavrix Photo, Inc. v. Brand Techs., Inc.*, 647 F.3d
2 1218, 1223 (9th Cir. 2011).

3 The Supreme Court has established that due process requires a defendant to have "certain
4 minimum contacts" with the forum state "such that the maintenance of the suit does not
5 offend traditional notions of fair play and substantial justice." *Int'l Shoe Co. v.*

6 *Washington*, 326 U.S. 310, 316 (1945). Personal jurisdiction may be either general or
7 specific. General jurisdiction exists when a defendant's contacts with the forum state are
8 "so continuous and systematic as to render them essentially at home" in the forum.

9 *Goodyear Dunlop Tires Operations, S.A. v. Brown*, 564 U.S. 915, 919 (2011). Specific
10 jurisdiction exists when a defendant has purposefully directed activities at the forum state
11 and the litigation arises out of or relates to those activities. *Burger King Corp. v.*
12 *Rudzewicz*, 471 U.S. 462, 472-73 (1985).

13 For specific jurisdiction, the Ninth Circuit applies a three-part test: (1) the nonresident
14 defendant must purposefully direct activities or consummate a transaction with the forum
15 or resident thereof; (2) the claim must arise out of or relate to the defendant's forum-
16 related activities; and (3) the exercise of jurisdiction must be reasonable. *Schwarzenegger*
17 *v. Fred Martin Motor Co.*, 374 F.3d 797, 802 (9th Cir. 2004).

18 In RICO actions, jurisdiction may be established based on a defendant's contacts with the
19 United States as a whole under 18 U.S.C. § 1965(b), which authorizes nationwide service
20 of process. See *Go-Video, Inc. v. Akai Elec. Co.*, 885 F.2d 1406, 1414-15 (9th Cir. 1989).

1 The Court must construe the alleged facts in the light most favorable to the plaintiff and
2 resolve all ambiguities or doubts in the plaintiff's favor. See *Dunham v. Mohyuddin*, 2:23-
3 CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025) (citing *Scheuer v. Rhodes*, 416 U.S. 232, 236
4 (1974); *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v.*
5 *Centoni*, 31 F.3d 813, 816 (9th Cir. 1994); *Jenkins v. McKeithen*, 395 U.S. 411, 421
6 (1969)).

7 III. FACTUAL BACKGROUND

8 Plaintiff is a qualified individual with disabilities who resides in Chico, California, within
9 the Eastern District of California. Plaintiff sought to participate as a candidate in the 2024
10 Presidential election but was systematically excluded through discriminatory conduct by
11 Defendants. This coordinated discrimination included:

- 12 1. Denial of reasonable accommodations required by the ADA and Section 504 of
13 the Rehabilitation Act
- 14 2. Imposition of discriminatory ballot access requirements that conflict with Article
15 II, Section 1, Clause 5 of the U.S. Constitution
- 16 3. Implementation of eligibility criteria specifically designed to screen out
17 individuals with disabilities in violation of 42 U.S.C. § 12182(b)(2)(A)(i)
- 18 4. Systematic failure to process accommodation requests
- 19 5. Denial of ballot access benefits without first affording Plaintiff due process
- 20 6. Implementation of policies that had a disparate impact on candidates with
21 disabilities

1 7. Operation of websites accessible to California residents that contained
2 discriminatory ballot access information
3 8. Transmission of discriminatory communications into California via mail, email,
4 and electronic communications
5 9. Engagement in RICO predicate acts including honest services fraud, wire fraud,
6 and obstruction of justice that directly targeted and affected a California resident
7 Defendants knowingly directed these activities at Plaintiff in California and committed
8 intentional acts that they knew would cause harm within this judicial district. The effects
9 of Defendants' RICO violations, civil rights violations, and discriminatory conduct were
10 expressly aimed at and primarily felt by Plaintiff within the Eastern District of California.

11 IV. ARGUMENT

12 A. Constitutional Preemption Principles Support Jurisdiction

13 Before addressing specific jurisdictional requirements, it is essential to establish the
14 constitutional framework that governs this dispute. The Supremacy Clause of the U.S.
15 Constitution, Article VI, Clause 2, establishes that federal law takes precedence over state
16 law when the two conflict. As the Supreme Court articulated in *McCulloch v. Maryland*,
17 17 U.S. (4 Wheat.) 316 (1819), this principle ensures that states cannot impede the
18 operation of federal constitutional powers.

19 1. Constitutional Preemption of State Ballot Access Requirements

20 Defendants imposed eligibility criteria for presidential ballot access that directly conflict
21 with Article II, Section 1, Clause 5 of the U.S. Constitution, which establishes only three

1 qualifications for presidential candidates: natural-born citizenship, being at least thirty-
2 five years of age, and having been a resident within the United States for fourteen years.
3 These state-imposed requirements are precluded under the Supremacy Clause.

4 The Supreme Court has consistently held that state laws that conflict with federal law are
5 "without effect." *Hillsborough County, Florida v. Automated Medical Laboratories, Inc.*,
6 471 U.S. 707, 713 (1985). Moreover, state laws are preempted when they "stand[] as an
7 obstacle to the accomplishment and execution of the full purposes and objectives of
8 Congress." *Crosby v. National Foreign Trade Council*, 530 U.S. 363, 372-73 (2000).

9 The Court's recent decision in *Trump v. Anderson*, No. 23-719, 601 U.S. (2024)
10 definitively established that "It would be incongruous to read this particular Amendment
11 as granting the States the power — silently no less — to disqualify a candidate for federal
12 office." This ruling confirms two critical principles: (1) States lack the power to
13 disqualify a candidate for federal office, and (2) not including a candidate on the ballot,
14 even for a primary, constitutes disqualifying the candidate.

15 As reaffirmed in *Arizona v. United States*, 567 U.S. 387, 399 (2012), the federal
16 government's constitutional authority supersedes conflicting state laws. By imposing
17 ballot access requirements that effectively disqualify Plaintiff—a constitutionally
18 qualified candidate—based solely on his disability, Defendants' actions are "without
19 effect" under the Supremacy Clause.

20 2. Due Process Violations in Denial of Ballot Access

1 Additionally, the government cannot deny people benefits without first affording due
2 process. The Supreme Court has consistently held that "the right to some kind of prior
3 hearing is paramount" before benefits can be withdrawn. *Goldberg v. Kelly*, 397 U.S.
4 254, 267 (1970). Similarly, in *Goss v. Lopez*, 419 U.S. 565, 572-73 (1975), the Court
5 held that students facing suspension have property and liberty interests that qualify for
6 protection under the Due Process Clause.

7 By denying Plaintiff access to the ballot without any meaningful process to consider his
8 accommodation requests, Defendants violated these established due process principles.
9 This constitutional violation provides further support for this Court's jurisdiction over
10 Defendants who directed these unconstitutional actions at a resident of this district.

11 B. This Court Has Specific Personal Jurisdiction Over Defendants

12 1. Purposeful Direction and Minimum Contacts

13 Defendants purposefully directed their activities toward California, establishing
14 minimum contacts sufficient for specific jurisdiction under the Supreme Court's "effects
15 test" articulated in *Calder v. Jones*, 465 U.S. 783 (1984). The Ninth Circuit has refined
16 this test to require that the defendant allegedly: "(1) committed an intentional act, (2)
17 expressly aimed at the forum state, (3) causing harm that the defendant knows is likely to
18 be suffered in the forum state." *Yahoo! Inc. v. La Ligue Contre Le Racisme Et*
19 *L'Antisemitisme*, 433 F.3d 1199, 1206 (9th Cir. 2006).

20 First, Defendants committed intentional acts by systematically denying Plaintiff's
21 reasonable accommodation requests, implementing discriminatory ballot access

1 requirements, and engaging in a coordinated scheme to exclude Plaintiff from the
2 electoral process.

3 Second, these acts were expressly aimed at California because Defendants:

4 a) Transmitted communications directly to Plaintiff in California, including the California
5 Secretary of State's email of July 26, 2024, acknowledging receipt of Plaintiff's
6 accommodation requests b) Operated websites accessible to California residents
7 containing information about discriminatory ballot access requirements c) Implemented
8 ballot access policies that directly affected California residents d) Directed electronic
9 communications into California that formed part of the alleged RICO enterprise e)
10 Engaged in a continuous course of dealing with Plaintiff in California f) Failed to
11 accommodate a qualified individual with disabilities residing in California

12 Third, Defendants knew their conduct would cause harm within California. As the
13 Supreme Court has recognized, a defendant who intentionally targets a known forum
14 resident satisfies the express aiming requirement. See *Walden v. Fiore*, 571 U.S. 277, 287
15 (2014). Defendants knew Plaintiff resided in California, as evidenced by their
16 communications addressed to Plaintiff at his California address, and therefore knew their
17 discriminatory conduct would cause harm in California.

18 In cases involving internet-based contacts, the Ninth Circuit applies a sliding scale
19 approach based on *Zippo Manufacturing Co. v. Zippo Dot Com, Inc.*, 952 F. Supp. 1119
20 (W.D. Pa. 1997). Defendants maintained interactive websites allowing California
21 residents to access information and submit forms, placing their activities at the active end

1 of the spectrum where personal jurisdiction is appropriate. See *Mavrix Photo*, 647 F.3d at
2 1226-27.

3 2. Claims Arise Out of Forum-Related Activities

4 The second prong of the specific jurisdiction analysis is satisfied because Plaintiff's
5 claims directly arise from Defendants' forum-related activities. The Ninth Circuit applies
6 a "but for" test to determine relatedness: a claim arises out of forum-related activities if
7 the plaintiff would not have been injured "but for" the defendant's forum-related conduct.
8 See *Ballard v. Savage*, 65 F.3d 1495, 1500 (9th Cir. 1995).

9 Here, Plaintiff's injuries would not have occurred but for Defendants':

10 a) Transmission of discriminatory communications to California b) Denial of
11 accommodations to a California resident c) Implementation of policies that harmed
12 Plaintiff in California d) Operation of interactive websites that enabled discriminatory
13 ballot access requirements affecting California residents e) Commission of predicate
14 RICO acts through electronic means directed at California

15 Plaintiff suffered the effects of Defendants' conduct in California, where he resides,
16 establishing the required nexus between Defendants' forum-related activities and the
17 claims asserted. See *Panavision Int'l, L.P. v. Toeppen*, 141 F.3d 1316, 1322 (9th Cir.
18 1998).

19 3. Reasonableness of Exercising Jurisdiction

1 Once the first two prongs are established, the burden shifts to Defendants to present a
2 "compelling case" that jurisdiction would be unreasonable. *Burger King*, 471 U.S. at 477.

3 The Supreme Court has identified five factors for assessing reasonableness:

4 a) The extent of the defendants' purposeful interjection into the forum state b) The burden
5 on the defendants in defending in the forum c) The extent of conflict with the sovereignty
6 of the defendants' state d) The forum state's interest in adjudicating the dispute e) The
7 most efficient judicial resolution of the controversy f) The importance of the forum to the
8 plaintiff's interest in convenient and effective relief g) The existence of an alternative
9 forum

10 *Dole Food Co. v. Watts*, 303 F.3d 1104, 1114 (9th Cir. 2002).

11 Each factor weighs in favor of finding jurisdiction reasonable in this case:

12 a) Defendants purposefully directed their activities at California, as demonstrated by their
13 communications with Plaintiff and implementation of policies affecting California
14 residents. This purposeful direction includes the imposition of eligibility criteria designed
15 to screen out individuals with disabilities in violation of 42 U.S.C. § 12182(b)(2)(A)(i),
16 which directly affected Plaintiff in California.

17 b) The burden on Defendants is minimal, as electronic filing and virtual proceedings
18 mitigate traditional concerns about geographic distance. See *Sinatra v. National Enquirer*,
19 *Inc.*, 854 F.2d 1191, 1199 (9th Cir. 1988).

20 c) There is no sovereignty conflict because this case involves federal questions under the
21 ADA, Rehabilitation Act, RICO, civil rights statutes, and constitutional provisions that

1 preempt conflicting state laws under the Supremacy Clause. As established in *Arizona v.*
2 *United States*, 567 U.S. 387 (2012), federal law supersedes state law where the two
3 conflict, particularly in areas of exclusive federal authority such as presidential
4 qualifications.

5 d) California has a strong interest in protecting its residents from discrimination and
6 ensuring their participation in federal elections. See *Burger King*, 471 U.S. at 473.

7 e) Efficient resolution of this controversy favors this forum because Plaintiff and key
8 evidence are located here.

9 f) This forum is vital to Plaintiff's interest in convenient and effective relief, as Plaintiff is
10 an indigent individual with disabilities for whom travel to other jurisdictions would pose
11 significant hardship.

12 g) While alternative forums might exist, none would serve the interests of justice as
13 effectively as the Eastern District of California, where Plaintiff resides and experienced
14 the harm.

15 B. Constitutional Violations Support Jurisdiction

16 The constitutional violations at issue provide additional support for this Court's exercise
17 of jurisdiction. When state officials impose eligibility criteria that conflict with Article II,
18 Section 1, Clause 5 of the U.S. Constitution, they act *ultra vires* and subject themselves to
19 federal court jurisdiction. As the Supreme Court established in *Ex parte Young*, 209 U.S.
20 123 (1908), state officials who violate federal constitutional rights are subject to federal
21 court jurisdiction to prevent continuing violations of federal law.

1 The discriminatory ballot access requirements imposed by Defendants were specifically
2 designed to screen out individuals with disabilities in violation of 42 U.S.C. § 12182(b)
3 (2)(A)(i). When these requirements are applied to a California resident, they create
4 specific contacts with this forum that support jurisdiction. Moreover, by denying Plaintiff
5 access to the ballot without any meaningful process, Defendants violated the due process
6 principles established in *Goldberg v. Kelly*, 397 U.S. 254 (1970) and *Goss v. Lopez*, 419
7 U.S. 565 (1975), further supporting this Court's jurisdiction over this constitutional
8 matter.

9 C. Specialized RICO Jurisdiction

10 In addition to traditional personal jurisdiction analysis, this Court has jurisdiction over
11 Defendants under 18 U.S.C. § 1965(b), which provides for nationwide service of process
12 in RICO actions when "the ends of justice require." Courts have consistently held that the
13 "ends of justice" provision supports jurisdiction when a significant number of defendants
14 reside within the district or when at least one defendant resides in the district and no other
15 district would have jurisdiction over all defendants. See *Butcher's Union Local No. 498 v.*
16 *SDC Inv., Inc.*, 788 F.2d 535, 539 (9th Cir. 1986).

17 Here, at least one Defendant resides within the Eastern District of California, and given
18 the nationwide nature of the conspiracy, no single district would have jurisdiction over all
19 Defendants without invoking § 1965(b). Therefore, the "ends of justice" provision
20 supports this Court's exercise of jurisdiction over all Defendants involved in the alleged
21 RICO enterprise.

1 C. Venue is Proper in the Eastern District of California

2 While distinct from personal jurisdiction, venue considerations further support this

3 Court's authority over this matter. Under 28 U.S.C. § 1391(b), venue is proper in:

4 1. A judicial district in which any defendant resides, if all defendants are residents of
5 the State in which the district is located;

6 2. A judicial district in which a substantial part of the events or omissions giving rise
7 to the claim occurred, or a substantial part of property that is the subject of the
8 action is situated; or

9 3. If there is no district in which an action may otherwise be brought, any judicial
10 district in which any defendant is subject to the court's personal jurisdiction.

11 Venue is proper in the Eastern District of California under § 1391(b)(2) because a
12 substantial part of the events giving rise to the claims occurred here, including:

13 1. The harm to Plaintiff occurred within this district

14 2. Communications were directed to and received by Plaintiff within this district

15 3. The effects of the discriminatory conduct were felt within this district

16 4. Key evidence, including Plaintiff's communications with Defendants, is located
17 within this district

18 In RICO cases, venue is also proper in any district where any defendant resides, is found,
19 has an agent, or transacts affairs. See 18 U.S.C. § 1965(a). As at least one Defendant
20 transacts affairs within this district through the operation of websites accessible to district

residents and the implementation of policies affecting district residents, venue is proper under the RICO statute as well.

V. ADDITIONAL CONSTITUTIONAL AND LEGAL AUTHORITIES SUPPORTING JURISDICTION

In addition to the constitutional preemption principles and civil rights violations previously discussed, multiple lines of constitutional and statutory authority support this Court's exercise of personal jurisdiction over Defendants:

A. First Amendment Ballot Access Jurisprudence

The Supreme Court has consistently recognized that ballot access restrictions implicate fundamental First Amendment rights of both candidates and voters. In *Anderson v. Celebrezze*, 460 U.S. 780 (1983), the Court struck down Ohio's early filing deadline for independent presidential candidates, holding that it violated the First and Fourteenth Amendments by placing an unconstitutional burden on the voting and associational rights of candidates and their supporters. The Court emphasized that restrictions that limit the field of candidates from which voters might choose infringe upon "the right of qualified voters, regardless of their political persuasion, to cast their votes effectively." *Id.* at 787-88.

Similarly, in *Norman v. Reed*, 502 U.S. 279 (1992), the Court reaffirmed "the constitutional right of citizens to create and develop new political parties," noting that this right "derives from the First and Fourteenth Amendments and advances the constitutional interest of like-minded voters to gather in pursuit of common political

ends." Id. at 288. The Court specified that any "severe restriction" on these rights must be "narrowly drawn to advance a state interest of compelling importance." Id. at 289.

The same First Amendment principles that undergird these decisions apply with equal force to the present case, where Defendants have imposed ballot access restrictions specifically designed to prevent candidates with disabilities from exercising their constitutional rights. When these restrictions are imposed on a California resident, they create contacts with this forum that support jurisdiction.

B. Equal Protection Jurisprudence

In *Williams v. Rhodes*, 393 U.S. 23 (1968), the Supreme Court established that state laws regulating ballot access must meet the requirements of the Equal Protection Clause of the Fourteenth Amendment. The Court has consistently applied heightened scrutiny to ballot access restrictions that disproportionately affect discrete classes of candidates. See *Bullock v. Carter*, 372 U.S. 234 (1972) (invalidating filing fee requirements that discriminated against candidates based on wealth).

The discriminatory ballot access requirements at issue in this case constitute classifications based on disability that trigger heightened scrutiny under the Equal Protection Clause. By directing these unconstitutional requirements at Plaintiff in California, Defendants created forum contacts that support jurisdiction.

C. Personal Jurisdiction in Constitutional Rights Cases

In cases involving fundamental constitutional rights, courts have recognized that traditional personal jurisdiction analysis must be informed by the nature of the rights at

1 stake. The Supreme Court's decision in *Burger King Corp. v. Rudzewicz*, 471 U.S. 462
2 (1985), established that when determining whether the exercise of personal jurisdiction
3 comports with "fair play and substantial justice," courts must consider "the interstate
4 judicial system's interest in obtaining the most efficient resolution of controversies; and
5 the shared interest of the several States in furthering fundamental substantive social
6 policies." *Id.* at 477.

7 Where, as here, the defendants have engaged in a nationwide pattern of civil rights
8 violations that specifically targeted a California resident, the exercise of jurisdiction
9 serves these important interests. As the Court emphasized in *Burger King*, "jurisdictional
10 rules may not be employed in such a way as to make litigation 'so gravely difficult and
11 inconvenient' that a party unfairly is at a 'severe disadvantage' in comparison to his
12 opponent." *Id.* at 478 (quoting *The Bremen v. Zapata Off-Shore Co.*, 407 U.S. 1, 18
13 (1972)). This principle applies with special force to civil rights plaintiffs with disabilities
14 who have been systematically excluded from the democratic process.

15 D. Due Process and Ballot Access

16 In addition to the due process considerations previously addressed, courts have
17 recognized that ballot access implicates fundamental due process concerns. The Supreme
18 Court's decisions in *Goss v. Lopez*, 419 U.S. 565 (1975), and *Goldberg v. Kelly*, 397 U.S.
19 254 (1970), establish that the government cannot deny individuals important benefits
20 without adequate procedural protections. Access to the ballot constitutes such a benefit,
21 and Defendants' systematic failure to provide meaningful procedures for considering
22 accommodation requests violates these due process principles.

1 Furthermore, in cases involving fundamental rights such as ballot access, courts have
2 applied a more flexible approach to personal jurisdiction that recognizes the importance
3 of providing a forum for the vindication of constitutional claims. See *Calder v. Jones*, 465
4 U.S. 783, 790 (1984) (considering the effects of intentional conduct directed at the forum
5 state in personal jurisdiction analysis).

6 VI. CONCLUSION

7 For the foregoing reasons, this Court has personal jurisdiction over Defendants, and
8 venue is proper in the Eastern District of California. The exercise of jurisdiction comports
9 with constitutional due process requirements and serves the interests of justice. This
10 conclusion is reinforced by the constitutional preemption principles articulated in
11 *Hillsborough County, Florida v. Automated Medical Laboratories, Inc.*, 471 U.S. 707
12 (1985) and *Crosby v. National Foreign Trade Council*, 530 U.S. 363 (2000), which
13 establish that state laws conflicting with federal law are "without effect" under the
14 Supremacy Clause.

15 Moreover, as the Supreme Court clearly established in *Trump v. Anderson*, No. 23-719,
16 601 U.S. (2024), states lack the power to disqualify candidates for federal office, and
17 excluding a candidate from the ballot constitutes such disqualification. When Defendants
18 imposed discriminatory ballot access requirements designed to screen out individuals
19 with disabilities in violation of 42 U.S.C. § 12182(b)(2)(A)(i) and denied these benefits
20 without affording due process as required by *Goldberg v. Kelly*, 397 U.S. 254 (1970) and
21 *Goss v. Lopez*, 419 U.S. 565 (1975), they created specific contacts with this forum that
22 support jurisdiction.

1 The extensive ballot access jurisprudence of the Supreme Court, including *Anderson v.*
2 *Celebrezze*, 460 U.S. 780 (1983) and *Norman v. Reed*, 502 U.S. 279 (1992), further
3 supports this Court's exercise of jurisdiction by establishing the fundamental nature of the
4 constitutional rights at stake. The Court's decision in *Burger King Corp. v. Rudzewicz*,
5 471 U.S. 462 (1985) provides the framework for analyzing personal jurisdiction in cases
6 involving intentional conduct directed at residents of the forum state, recognizing that
7 "jurisdictional rules may not be employed in such a way as to make litigation 'so gravely
8 difficult and inconvenient' that a party unfairly is at a 'severe disadvantage' in comparison
9 to his opponent." *Id.* at a 478.

10 Accordingly, Plaintiff respectfully requests that this Court grant this motion and establish
11 personal jurisdiction over all Defendants in this action.

12 **Dated:** April 16, 2025

13 **Respectfully submitted,**

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Petitioner, Pro per pro se

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VERIFICATION

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
3 that the foregoing is true and correct to the best of my knowledge and belief.

4 Executed on April 16, 2025, at Butte County, California.

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Mathew Tyler

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1 [PROPOSED] ORDER

2 Having considered Plaintiff Mathew Tyler's Pretrial Motion to Establish Personal
3 Jurisdiction Over Defendants in the Eastern District of California, and good cause
4 appearing therefor,

5 IT IS HEREBY ORDERED that:

6 1. Plaintiff's Motion is GRANTED.

7 2. This Court has personal jurisdiction over all Defendants in this action.

8 3. Venue is proper in the Eastern District of California.

9 IT IS SO ORDERED.

10 Dated: _____, 2025

11 United States District Judge

12